

24CMCV01277 24CMCV01277

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-01

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT DATE: September 1, 2026 TIME: 8:30 A.M.

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Case Number: 24CMCV01277 Hearing Date: September 1, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ANNALICEL ORTIZ VARGAS, an individual,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC., a Delaware Limited Liability Company, and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 24CMCV01277

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

DATE: September 1, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff Annalichel Ortiz Vargas

Responding Party: None

Notice: Ok

Tentative Ruling: Plaintiff's Motion to Enforce Settlement is DENIED.

I. BACKGROUND

This is a Song-Beverly action arising from the purchase of an allegedly defective 2023 Honda Odyssey (the "Subject Vehicle"). Plaintiff Annalichel Ortiz Vargas ("Plaintiff") alleges that she purchased the Subject Vehicle, which was warranted by Defendant American Honda Motor Co., Inc. ("Honda" or "Defendant"), and was delivered with serious defects and nonconformities to warranty.

On August 22, 2024, Plaintiff filed her operative Complaint against Honda and Does 1 through 10, inclusive, alleging (1) Violation of Song-Beverly Act – Breach of Express Warranty, (2) Violation of Song-Beverly Act – Breach of Implied Warranty, and (3) Violation of the Song-Beverly Act Section 1793.2.

On September 30, 2024, Honda filed its Answer.

On November 7, 2024, Plaintiff filed a Notice of Settlement indicating that the parties had reached a conditional settlement agreement for the resolution of the entire case.

On June 10, 2026, Plaintiff filed her initial Motion to Enforce Settlement.

On July 15, 2026, the Court issued a tentative ruling noting that Plaintiff had not attached the correct copy of the 998 Offer to her moving papers and, upon discussion with counsel at oral argument, continued the hearing on Plaintiff's Motion to September 1, 2026 to allow for the proper documentation to be attached. (See Minute Order, 7/15/26.)

On July 29, 2026, Plaintiff filed the instant (her second) Motion to Enforce Settlement.

As of August 30, 2026 no opposition or reply has been filed. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II. ANALYSIS

A. Legal Standard

1. Code of Civil Procedure § 664.6

Code of Civil Procedure § 664.6 provides, in relevant part, as follows:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc. § 664.6.)

"A trial court, when ruling on a section 664.6 motion, acts as a trier of fact. [Citation.]" (Skulnick v. Roberts Express, Inc. (1992) 2 Cal.App.4th 884, 889.) A trial court is empowered under this section to resolve reasonable disputes over the terms of a settlement. (Ibid; Machado v. Myers (2019) 39 Cal.App.5th 779, 795.)

The ultimate issue for the trial court to decide is whether the parties formed an enforceable contract, since a settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 815; Machado v. Myers, supra, 39 Cal.App.5th at p. 795.) When extrinsic evidence is necessary, the Court may decide the motion on declarations alone. (Richardson v. Richardson (1986) 180 Cal.App.3d 91, 97.)

2. Code of Civil Procedure § 998

Code of Civil Procedure § 998(b)(1), provides, in relevant part, as follows: "Not less than 10 days prior to commencement of trial or arbitration (as provided in Section 1281 or 1295) of a dispute to be resolved by arbitration, any party may serve an offer in writing upon any other party to the action to allow judgment to be taken to an award to be entered in accordance with the terms and conditions stated at the time . . . [i]f the offer is accepted, the offer with proof of acceptance shall be filed and the clerk or the judge shall enter judgment accordingly." (Code Civ. Proc. § 998(b)(1).)

B. Discussion

Plaintiff seeks an order to enforce the settlement agreement between herself and Defendant. Per Plaintiff's counsel Jessica Mijares ("Mijares"), the parties entered into a settlement agreement pursuant to Code of Civil Procedure § 998. (Mijares Decl., ¶ 4, Exh. 1.) According to Mijares, the terms of the settlement agreement were that Defendant would perform its obligations within 65 days of acceptance. (Id., ¶ 8.)

On June 17, 2025, Defendant sent a portion of the settlement check. (Id., ¶ 6.) Mijares attests to Plaintiff's counsel's office contacting Defendant's counsel 28 times throughout March to October 2025 requesting an update on the status of the settlement checks. (Id., ¶ 7, Exh. 2.) However, to date the terms of the settlement still remain to be completed. (Id., ¶¶ 9-11.) Given that the terms of settlement agreement remain to be completed, Plaintiff moves the court to enforce the parties' settlement agreement. (Id., ¶ 10.)

Upon review of Plaintiff's motion and the supporting documentation, the Court finds Plaintiffs' Motion remains improper. Although Plaintiff has addressed the previously noted issue by attaching the correct documentation to the motion itself, Plaintiff noticed her Motion to be heard on September 16, 2025 – despite the discussion with the Court on July 15, 2026 that the Motion would be heard on September 1, 2026 and despite the Court's July 15, 2026 Minute Order noting that the Motion would be hearing on September 1, 2026. Plaintiff has not given proper notice of her motion.

III. CONCLUSION

Plaintiff's Motion to Enforce Settlement is DENIED.